



Passenger Vehicles (Experimental Areas) Act 1977

1977 CHAPTER 21

An Act to enable the requirements of Part III of the Road Traffic Act 1960 and other requirements applying to or in connection with public service vehicles to be modified in relation to areas designated as experimental areas by the Secretary of State. [22nd July 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purposes of this Act an experimental area is any area in Great Britain for the time being designated in accordance with the following provisions of this section as an area in relation to which the requirements of Part III of the Road Traffic Act 1960 as to public service vehicles may be modified. Public service vehicle licensing; designation of experimental areas.

(2) The Secretary of State may by order so designate any area consisting of the whole or a part of the area of a local authority. The Secretary of State, if requested to do so as regards any such area by the local authority concerned, shall so designate the area in question. 1960 c. 16.

(3) An order under subsection (2) above, other than one for altering the area designated by a previous order under that subsection, shall specify the period (starting with the day on which the order comes into operation, and not exceeding two years) for which it is to have effect; and at the end of the period so specified the order (and any other order in force under that subsection which amends it) shall cease to have effect unless continued in force by an order under subsection (4) below.

(4) The Secretary of State—

- (a) may from time to time by order extend or further extend the period for which any particular order in force under subsection (2) above is to have effect; and
- (b) if requested by the local authority whose area is or contains the experimental area designated by such an

order to extend or further extend the period for which the order is to have effect, shall so extend or further extend that period accordingly ;

but the period of extension or further extension provided for in any one order under this subsection shall not exceed two years.

(5) Before making any order under this section in respect of an area the Secretary of State shall consult with the local authority concerned, with such organisations as appear to him appropriate as representing persons providing or employed in the provision of public passenger transport services in the area, and with such other organisations or bodies as appear to him appropriate.

(6) Any power conferred by this section to make orders—

- (a) shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament ; and
- (b) shall include power to revoke or vary a previous order made under this section.

Powers
of local
authorities in
relation to
experimental
areas.

2.—(1) In relation to an experimental area the local authority concerned shall have the powers conferred by this section.

(2) The local authority concerned may grant authorisations in respect of the use of vehicles for the carriage of passengers for hire or reward, whether or not at separate fares—

- (a) within the experimental area or within one or more parts of that area ; or
- (b) within the experimental area and also on journeys falling partly within the experimental area and partly outside that area including, subject to subsection (5) below, journeys falling partly within the area of another local authority.

(3) An authorisation under this section may be either—

- (a) a general authorisation, applying (according to its terms) either—
 - (i) to private vehicles generally ; or
 - (ii) to private vehicles adapted to carry not more than a specified number of passengers, being a number less than sixteen ;

or

- (b) a special authorisation issued to a specified person and applying to such one or more private vehicles or commercial vehicles as may be specified in the authorisation.

(4) An authorisation under this section shall specify the experimental area to which it relates and shall either—

- (a) state that it applies to the whole of that area ; or

(b) specify the part or parts of that area to which it applies ;
or

(c) state that it applies to the whole of that area and also covers journeys of the kind mentioned in subsection (2)(b) above.

(5) A special authorisation granted by a local authority which is expressed to cover journeys of the kind mentioned in subsection (2)(b) above shall be of no effect within the area of another local authority unless granted with that other authority's consent.

(6) An authorisation under this section shall be granted only with the approval of the Secretary of State, given either for that particular authorisation or generally for authorisations of a class or description into which that authorisation falls.

An approval under this subsection given for a class or description of special authorisations may be limited so as to apply only to the grant of authorisations of that class or description containing conditions of a kind specified in the approval.

(7) The Schedule to this Act shall have effect with respect to authorisations under this section.

(8) Where, in the case of any private or commercial vehicle, the use of the vehicle within any particular area, or on any particular journey, is covered by an authorisation under this section, then, in relation to its use in that area or on that journey in circumstances in which the relevant conditions are fulfilled, the vehicle shall be treated as not being a public service vehicle for the purposes of—

(a) Part III of the Road Traffic Act 1960 ; and

1960 c. 16.

(b) any other enactment (whenever passed or made) relating to public service vehicles in which “ public service vehicle ” is defined directly or indirectly by reference to the provisions of the said Part III.

In this subsection—

“ enactment ” includes a provision of an instrument of a legislative character made under an enactment ;

“ the relevant conditions ” means—

(a) in the case of a general authorisation, the conditions attached to the authorisation by virtue of paragraph 1 of the Schedule to this Act, and

(b) in the case of a special authorisation, any conditions attached to the authorisation under that Schedule.

(9) In this section and the Schedule to this Act—

“ commercial vehicle ” means a motor vehicle adapted to carry not more than five passengers which, apart from

any use made of it in pursuance of an authorisation under this section, is used for carrying passengers for hire or reward in the course of a passenger transport business ;

“ passenger transport business ” means any business which consists of or includes the carrying of passengers for hire or reward ;

“ private vehicle ” means a motor vehicle adapted to carry not more than sixteen passengers which, apart from any use made of it in pursuance of an authorisation under this section, is not used for carrying passengers for hire or reward in the course of a passenger transport business ;

“ specified ”, in relation to an authorisation under this section, means specified in the authorisation ;

1960 c. 16. and references to the carrying of passengers for hire or reward shall be construed in accordance with section 118(3) of the Road Traffic Act 1960.

Travel concessions.

3.—(1) A local authority may make with any person whose use of a motor vehicle is covered by an authorisation under section 2 above the like arrangements for the grant of travel concessions by that person as the authority have power to make under section 138(3) of the Transport Act 1968 (travel concessions) with a person who operates a public service vehicle undertaking.

1968 c. 73.

(2) Subsections (4) and (5) of the said section 138 shall, so far as applicable, apply in relation to arrangements under this section as they apply in relation to arrangements under subsection (3) of that section ; and in this section “ local authority ” and “ travel concession ” have the same meaning as in the said section 138.

Short title, interpretation and extent.

4.—(1) This Act may be cited as the Passenger Vehicles (Experimental Areas) Act 1977.

(2) In this Act—

“ local authority ”, except in section 3 above, means, for England and Wales, a county council or the Greater London Council and, for Scotland, a regional or islands council ;

“ the local authority concerned ” means—

(a) in relation to any area designated or proposed to be designated under section 1(2) of this Act, the local authority whose area is or contains that area, and

(b) in relation to an authorisation or proposed authorisation under section 2 of the Act, the local authority who granted it or have power to grant it.

(3) This Act does not extend to Northern Ireland.

SCHEDULE

Section 2.

AUTHORISATIONS UNDER SECTION 2

General authorisations

1. There shall by virtue of this paragraph be attached to every general authorisation the following conditions—

- (a) a journey in pursuance of the authorisation must not be made in conjunction with, or in extension of, a service provided under a road service licence (within the meaning of the Road Traffic Act 1960) if the vehicle is owned by, or made available under any arrangement (including a hiring agreement or hire-purchase agreement) with, the holder of the licence or any person who receives any remuneration in respect of the service provided thereunder or in respect of arrangements for that service ;
- (b) any such journey must be made without previous advertisement to the public ;
- (c) vehicles used in pursuance of the authorisation must not stand or ply for hire ;
- (d) any carriage of passengers by a vehicle in pursuance of the authorisation must be carriage for which arrangements were made before the journey began.

2.—(1) A general authorisation shall be granted by resolution of the local authority concerned.

(2) Paragraph 13 below applies in relation to any such resolution.

3.—(1) The local authority concerned may by resolution vary a general authorisation in one or both of the following ways, where applicable, that is to say so as to—

- (a) increase the number specified in pursuance of section 2(3)(a)(ii) of this Act ; or
- (b) in the case of an authorisation which does not apply to the whole of an experimental area, add one or more other parts of the experimental area to that or those previously specified in accordance with section 2(4) of this Act, or make the authorisation apply to the whole of the experimental area.

(2) Paragraph 13 below applies in relation to any such resolution.

Special authorisations

4. In deciding whether to grant a special authorisation or whether to exercise their discretion to revoke such an authorisation the local authority concerned shall, in particular, have regard to the fitness for use in pursuance of the authorisation of any vehicle which is to be or is a specified vehicle, and to the suitability of the persons who will be or are using any such vehicle in pursuance of the authorisation.

5.—(1) The local authority granting a special authorisation may attach to it such conditions as they think fit with respect to all or any of the following matters—

- (a) the persons by whom the specified vehicle or vehicles may be used in pursuance of the authorisation ;
- (b) the routes on which the specified vehicle or vehicles are to be used in pursuance of the authorisation ;
- (c) the timetables to be observed with respect to specified journeys ;
- (d) the advertisement of services provided by means of any specified vehicle ;
- (e) the points at which passengers may be taken up or set down ;
- (f) the rates of payment to be charged to passengers ;
- (g) any other matter which appears to the authority to be appropriate having regard to local circumstances.

(2) Paragraph 13 below applies in relation to the grant of a special authorisation.

6.—(1) The local authority concerned—

- (a) may by notice in writing given to the specified person vary the conditions attached to a special authorisation under paragraph 5 above, either on the initiative of the authority or on an application in that behalf made to them by the specified person ; and
- (b) if so directed by the Secretary of State, shall so vary those conditions in accordance with the direction.

(2) The power conferred by sub-paragraph (1)(a) above shall be exercised only with the approval of the Secretary of State given either for the particular exercise of it in question or generally for cases of a class or description into which that exercise of it falls.

(3) If the local authority concerned fails to comply with a direction of the Secretary of State requiring them to vary the conditions attached to a special authorisation under paragraph 5 above, the Secretary of State may himself by notice in writing given to the specified person vary those conditions.

7. A special authorisation shall not be transferable.

Duration of authorisations

8. Unless previously revoked, an authorisation shall cease to have effect when the order under section 1(2) of this Act by virtue of which it was granted ceases to have effect.

Revocation of authorisations

9. The local authority concerned may revoke an authorisation at any time, and shall do so if so directed by the Secretary of State.

10.—(1) Revocation of a general authorisation shall be effected by resolution of the local authority concerned.

(2) Revocation of a special authorisation shall be effected by giving notice of its revocation to the specified person.

(3) If the local authority concerned fails to comply with a direction of the Secretary of State requiring them to revoke an authorisation, the Secretary of State may himself revoke the authorisation—

(a) in the case of a general authorisation, by order ; or

(b) in the case of a special authorisation, by giving notice of its revocation to the specified person.

(4) Paragraph 13 below applies in relation to the revocation of a general authorisation or special authorisation.

Special authorisations requiring the consent of other local authorities

11. Every special authorisation granted with the consent of one or more local authorities other than the authority by whom it is granted shall include a statement to that effect, specifying the consenting authorities ; and a statement in any special authorisation under section 2 of this Act to the effect that it was so granted shall be evidence, and in Scotland sufficient evidence, of the matters stated.

General

12. Where an authorisation ceases to have effect or is varied under or by virtue of the preceding provisions of this Schedule, its previous operation shall not be affected thereby.

13.—(1) A local authority shall before—

(a) passing any resolution in pursuance of paragraph 2, 3 or 10(1) above for the purpose of granting, varying or revoking a general authorisation ; or

(b) granting or revoking a special authorisation,

give the appropriate notice in one or more relevant newspapers ; and where a local authority intend to revoke a special authorisation they shall also give the appropriate notice in writing to every district council, London borough council, parish council and, in Scotland or Wales, community council who may in the opinion of the local authority be affected by the revocation of the authorisation.

(2) In sub-paragraph (1) above “ the appropriate notice ” means—

(a) not less than 21 days’ notice of intention to consider a resolution or grant a special authorisation ; and

(b) not less than 56 days notice of intention to revoke a special authorisation.

(3) Before passing the resolution or granting or revoking the special authorisation in question the local authority shall take account of any representations received by them in relation to it.

(4) The local authority may—

(a) pass any resolution ; or

(b) grant any special authorisation,

in respect of which notice has been given under sub-paragraph (1) above either with or without modifications.

(5) As soon as may be after—

(a) a local authority have passed any such resolution as is mentioned in sub-paragraph (1)(a) above ; or

(b) the Secretary of State has made an order under paragraph 10(3)(a) above for the purpose of revoking a general authorisation,

the local authority or the Secretary of State, as the case may be, shall give notice of its having been passed or made in one or more relevant newspapers ; and the grant, variation or revocation, as the case may be, shall not take effect before notice of the resolution or order having been passed or made is so given.

(6) A notice under sub-paragraph (5) above of any resolution granting an authorisation shall include particulars of the terms of the authorisation (including the conditions attached to it) ; and a local authority or the Secretary of State may include in any notice under this paragraph such other relevant information as they or he may think fit.

(7) For the purposes of any notice under this paragraph a “ relevant newspaper ” is any local newspaper which the local authority or the Secretary of State, as the case may be, may consider appropriate.

14. For the purposes of paragraph 1(b) above no account shall be taken of any advertisement consisting of a notice such as is mentioned in paragraph 13(a) or (b) of Schedule 12 to the Road Traffic Act 1960, and paragraph 5(1)(d) above shall not extend to advertisement by means of any such notice.